

TENTATIVE RULINGS

FOR: August 21, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. 6 Zoom

Join by Video (Preferred)

<https://www.zoomgov.com/j/1611412615?pwd=CVuzAdEmMJNjcWp0iWBmt1blRNHvyP.1>

Join by Phone: 833 568 8864 or 833 435 1820 **Meeting ID:** 161 141 2615 **Password:** 649401

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Charles Richard Kepner

25PR000144

STATUS HEARING RE: FINAL DISTRIBUTION

TENTATIVE RULING: A status report is on file. Although there is no evidence that the status report was properly noticed and served on all interested persons (see Prob. Code, 12201), the Court determines that continuation of administration is in the best interests of the estate. Thus, the Court orders that administration of the estate continue. (Prob. Code, § 12201, subd. (c)(2).) The matter is CONTINUED to November 20, 2026, at 8:30 a.m. in Dept. A. If final distribution petition is not already on file, Executors shall file and serve, at least 15 days prior to the next hearing, an updated status report pursuant to Prob. Code section 12200. The Clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

City of American Canyon v. Timothy J. Shea et al

20CV001254

MOTION FOR DETERMINATION OF LEGAL ISSUES REGARDING SEVERANCE DAMAGES AND GOOD WILL DAMAGES – FURTHER HEARING AS TO ISSUE 2 ONLY

TENTATIVE RULING: The Motion, as to Issue No. 2 (defined below), is DENIED. The parties are directed to appear to discuss Plaintiff’s request to bifurcate the matter.

A. PROCEDURAL MATTERS

Plaintiff City of American Canyon (“Plaintiff” or “City”) moves, pursuant to Code of Civil Procedure section 1260.040, subdivision (a),¹ for a determination of legal and evidentiary issues affecting determination of fair market value.

The City’s Motion sought six rulings (“Issues”). The matter originally came on for hearing on July 16, 2026. In an Order After Hearing (“OAH”), dated July 17, 2026, the Court denied, as moot, the Motion as to five Issues, Nos. 1, 3, 4, 5, and 6. With respect to the remaining Issue No. 2, the Court continued the hearing and granted (1) Defendants leave to file a Supplemental Opposition of no more than seven pages with supporting evidence on or before August 3, 2026 and (2) Plaintiff to file a Supplemental Reply of no more than seven pages on or before August 14, 2026.

The parties timely filed their supplemental briefs and evidence.

The remaining Issue No. 2 is a ruling as follows: “The construction of a center median as part of the Project, which will preclude trucks with a wheel-base of 40 feet or greater from egressing via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing severance damages in this action.” (Notice of Motion, 2:12-16.)

B. LEGAL STANDARD

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.